of a case, if the defendant (the person who is alleged to have broken the law) is found guilty, (s)he will be punished by the state.

In contrast, **civil law** serves to settle disputes[1] between individuals (including companies and corporations). At the end of a case, the party at fault has to pay compensation or comply with another suitable remedy (e.g. an injunction). The differences between the two may be summed up as follows[2] (Table 1.1).

Table 1.1 Differences between civil and criminal cases

	Civil cases	**Criminal cases**
parties	plaintiff(claimant, petitioner, demandant, or otherwise)brings case; defendant must answer of lose by default	Prosecutor (being district or US attorney, on behalf the state) brings case, and the grand jury; defendant may remain silent
Burden of proof	the burden is on the plaintiff to prove his case by "a preponderance of evidence"	the burden is on the government to prove "beyond a reasonable doubt"
objective	to settle disputes peacefully, usually between private parties	to maintain social order or peace; to punish the perpetrator or the most blameworthy; to deter further wrongdoing
remedy	damages (legal remedy); injunction, specific performance or other equitable remedies	fine, forfeiture of property, jail sentence, death penalty, etc.

By looking at the parties listed in the caption of a case going to trial, one can often tell a civil case from a criminal case.

If the government appears first in the caption of the case, e.g., *U.S. v. Lieberman*, it is most likely that the United States is prosecuting on behalf of the people. The same is true of cases prosecuted by state **district attorneys** (e.g., *State v. Seidel*). But this is not a foolproof formula, for governments may also bring civil actions to settle disputes with individuals, corporations, or other governments. For example, *U.S. v. Mayer* is a collection action for unpaid taxes, and *U.S. v. Canada* is a boundary dispute in the International Court of Justice; further, a government can also be sued if the government waives its sovereign immunity, as in the case *Warner v. U.S.* where Warner claims

[1] Apart from litigation through the court system, three major forms of alternative dispute resolution processes ("ADR"), i.e. arbitration, mediation and negotiation, are widely embraced by disputing parties to resolve a dispute for these processes are easier, faster and less expensive.

[2] These differences include the following: (1) the purposes are different. Criminal cases are brought to maintain law and order and to protect society, while civil cases are brought to uphold the rights of individuals and to provide redress; (2) courts hearing the cases are different; (3) cases are brought by different parties. A criminal case is usually brought by the Crown Prosecution Service (CPS) , DA (district attorney), or procurator, as the case may be, on behalf of the state (or Crown), while a civil case is brought by an individual or company or corporation alleged to have sustained any actual loss or damage of any other kind; (4) the standard of proof is different. Criminal cases must be proven beyond reasonable doubt, while civil cases only have to be proven on the balance of probabilities, i.e. the so-called preponderance standard, under which the burden of proof is met when the party with the burden convinces the fact finder that there is a greater than 50% chance that the claim is true; (5) the terminology used is different. The person starting the case is given a different name by each system (including, but not limited to, claimant, complainant, plaintiff, petitioner, appellant, prosecutor, DA, CPS, procurator, etc.), while the person against whom the case or suit is brought is also termed differently, including defendant, respondent, the accused, defender, appellee, etc. While the distinction between civil and criminal is quite clear, it does not always capture the whole of the legal system or the types of law that exist.